

District-Kurigram.

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Md. Toufiq Inam

Civil Revision No. 3873 of 2018.

Noresh Das and others.

.....Pre-emptee-Respondent-Petitioners.

-Versus-

Md. Rabiul Haque.

.....Pre-emptor-Appellant-Opposite Party No.1.

Md. Delowar Hossain and others.

..... Opposite Party Nos. 2-14.

Mr. Md. Sajjad Ali Chowdhury, Advocate

.....For the Pre-emptee-Respondent-Petitioners.

Mr. Md. Raju Mia, Advocate

...For the Pre-emptor-Appellant-Opposite Party No.1.

Heard On: 27.07.2025, 03.08.2025.

And

Date of Judgment: 18.08.2025.

Md. Toufiq Inam, J.

This Rule was issued calling upon the opposite party No. 1 to show cause as to why the judgment and order dated 01.10.2018 passed by the learned Joint District Judge, 1st Court, Kurigram in Miscellaneous Appeal No. 42 of 2012 allowing the appeal and thereby reversing the judgment and order dated 29.02.2012 passed by the learned Senior Assistant Judge, Ulipur, Kurigram in Miscellaneous Case No. 50 of 2002, should not be set aside and/or why such other or further order or orders should not be passed as to this Court may seem fit and proper.

The opposite party No. 1, as plaintiff, instituted Miscellaneous Case No. 50 of 2002 before the Court of Senior Assistant Judge, Ulipur, Kurigram under Section 96 of the State Acquisition and Tenancy Act, 1950 (SAT Act) for pre-emption of the case land described in the schedule of the plaint.

The case of the pre-emptor, in short, is that the case land measuring 0.03 decimals forms part of 11.50 acres, out of which 0.28 decimals recorded in current plot No. 609 corresponding to former plot No. 1099 appertains to S.A. Khatian No. 402 and C.S. Khatian No. 146. The land was originally recorded in the name of Sajna Bewa who died issueless leaving behind her husband, Gommoddi Sheikh, as her sole heir. In the S.A. Khatian No. 402 the names of Gommoddi Sheikh and Amiruddin were recorded. Amiruddin transferred his land to Montu and Purimoyee Dasi, who subsequently transferred their portions to opposite party No. 2 and opposite parties Nos. 7–10 respectively. Gommoddi Sheikh transferred his land to Rajab and Asia Khatoon in 1961 and 1986, and the rest to Shamsuddin, who in turn transferred to Mokbul Hossain in 1992. Mokbul Hossain later sold his land to opposite party No. 2. Eventually, Shamsuddin sold land to the pre-emptor and opposite parties Nos. 3–6 in 1998, thereby making the pre-emptor a co-sharer in the jote. The grievance of the pre-emptor is that opposite party No. 2 transferred the case land to opposite party No. 1 on 31.07.2002 without serving notice of transfer, thereby giving rise to the right of pre-emption.

The pre-emptee purchaser contested the case by filing written objection denying the material allegations. His case is that he is a poor fisherman whose homestead was eroded by the river Dharala, and that for the purpose of rehabilitation he purchased the case land in presence of the pre-emptor and built his homestead thereon. According to him, the case for pre-emption was not maintainable and liable to be dismissed.

The trial court, upon hearing both parties and examining the evidence, by judgment and order dated 29.02.2012 disallowed the case for pre-emption. Being aggrieved, the pre-emptor preferred Miscellaneous Appeal No. 42 of 2012, which was allowed by the learned Joint District Judge, 1st Court, Kurigram, who by judgment and order dated 01.10.2018 set aside the decision of the trial court and allowed pre-emption. Being dissatisfied, the pre-emptee purchaser moved this Court in revision and obtained the present Rule.

Mr. Md. Sajjad Ali Chowdhury, learned Advocate for the petitioner (pre-emptee purchaser), submits that the appellate court committed an error of law in allowing pre-emption, which resulted in failure of justice. He contends that the appellate court failed to comply with the mandatory provisions of Order XLI Rule 31 of the Code of Civil Procedure (CPC) since no proper points for determination were

framed. He further argues that the trial court had rightly dismissed the case as barred by limitation, as the pre-emptor failed to prove the date of knowledge of the transfer.

Per contra, Mr. Raju Mia, learned Advocate for the opposite party No. 1, submits that the appellate court judgment is lawful and sustainable. He points to paragraph 7 of the appellate judgment to show that the point of determination was in fact framed and decided in compliance with Order XLI Rule 31 CPC.

On the issue of limitation, he argues that under Section 96 of the SAT Act read with Section 60 of the Registration Act, the limitation period starts from the date of registration, not from the date of execution of the deed. He further submits that since the deed was registered on 23.05.2002 and the case was filed on 15.09.2002, the case was well within four months. By relying on the principle laid down in 43 DLR 506, he asserts that the trial court misdirected itself in dismissing the case as time-barred, while the appellate court rightly corrected the error.

Upon hearing the learned Advocates and examining the record, the following issues call for determination:

1. Whether the appellate court complied with Order XLI Rule 31 CPC.
2. Whether the pre-emption case was barred by limitation.

3. Whether the pre-emptor was a co-sharer in the jote.

On the first issue, a perusal of paragraph 7 of the impugned judgment makes it clear that the appellate court framed the point of determination as to whether the judgment of the trial court could be sustained in law. The appellate court then addressed this issue in its reasoning and decision. Thus, the requirements of Order XLI Rule 31 CPC have been duly complied with.

On the second issue, it is a settled principle that for the purpose of limitation under Section 96 of the SAT Act, time runs from the date of registration under Section 60 of the Registration Act, not from the date of execution of the deed. Since the deed was registered on 23.05.2002 and the pre-emption case was filed on 15.09.2002, the case was clearly instituted within the statutory period. The trial court, therefore, erred in law in holding otherwise.

On the third issue, the appellate court, on proper scrutiny of the deeds of transfer, found that the pre-emptor had acquired co-sharership by purchase. This finding is based on evidence and materials on record, and this Court finds no reason to interfere with such a finding of fact.

In light of the above discussion, this Court finds no illegality, material irregularity, or error of law in the impugned judgment of the appellate

court. Rather, the appellate court correctly appreciated the law and facts and arrived at a just decision.

Accordingly, the Rule is discharged.

The judgment and order dated 01.10.2018 passed by the learned Joint District Judge, 1st Court, Kurigram in Miscellaneous Appeal No. 42 of 2012 is hereby upheld.

The office is directed to send down the record and communicate this judgment to the court below at once.

(Justice Md. Toufiq Inam)

Ashraf /ABO.